The Court Never So Held: Title II, Section 5, and Application-Specific Logic in Sovereign Immunity

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Abstract

The United States Supreme Court has never held that Title II of the Americans with Disabilities Act, considered as an undifferentiated whole, either validly or invalidly abrogates state sovereign immunity under § 5 of the Fourteenth Amendment. As Fitzpatrick makes clear, the Fourteenth Amendment supplies the constitutional source for abrogation, while Seminole Tribe underscores the limits of Congress's Article I authority. *Board of Trustees of the University of Alabama v. Garrett* invalidated Title I's abrogation while expressly reserving Title II. *Tennessee v. Lane* subsequently held that Title II validly abrogates state sovereign immunity as applied to the class of cases implicating the fundamental right of access to the courts. *United States v. Georgia* then held that Title II validly abrogates immunity insofar as the challenged conduct itself violates the Fourteenth Amendment, while directing courts to distinguish such conduct from Title II violations that do not independently violate the Constitution. These decisions establish application-specific routes to valid abrogation rather than a comprehensive holding that Title II is either generally valid or generally invalid under § 5. *Allen v. Cooper* invalidated the Copyright Remedy Clarification Act's broad abrogation, but the survival of an as-applied, *Georgia*-type theory after a broad statutory abrogation fails remains checked by critical hurdles of statutory severability and text-bound remedial construction.

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1. Introduction

The Supreme Court's sovereign-immunity cases involving the Fourteenth Amendment do not support the simple proposition that Title II of the Americans with Disabilities Act ("ADA") is either generally valid or generally invalid under § 5. The Court has instead addressed particular applications of Title II under distinct constitutional predicates.

In *Board of Trustees of the University of Alabama v. Garrett*, the Court held that Congress had not validly abrogated state sovereign immunity through Title I of the ADA, expressly declining to decide whether Title II was a valid exercise of Congress's § 5 power. *Tennessee v. Lane* later held that Title II validly abrogated state sovereign immunity as applied to the class of cases implicating the fundamental right of access to the courts. *United States v. Georgia* subsequently held that Title II validly abrogates immunity insofar as the challenged conduct itself violates the Fourteenth Amendment, while leaving open the validity of abrogation for Title II violations that do not independently violate the Constitution.

This distinction matters. A holding that Congress validly abrogated sovereign immunity for a defined class of Title II applications is not a holding that Title II's abrogation is valid in every application. Conversely, a holding that Congress lacked § 5 authority for one broad statutory abrogation does not establish that every conceivable application of that statute is constitutionally barred.

This dynamic becomes vital in cases like *Allen v. Cooper*, where the Court unanimously affirmed that the Copyright Remedy Clarification Act ("CRCA") did not validly abrogate state sovereign immunity. The proper doctrinal question is therefore not whether a statute has been simply "validated" or "invalidated," but what constitutional basis supports Congress's authority to subject a State to damages liability for the particular conduct asserted, constrained by the statutory text enacted.

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2. Section 5 and the Scope of Congressional Abrogation

The Eleventh Amendment and principles of state sovereign immunity ordinarily prevent private individuals from obtaining damages against nonconsenting States in federal court. Congress may nevertheless abrogate that immunity when legislating pursuant to a constitutional provision that grants such authority, such as § 5 of the Fourteenth Amendment.

The modern framework begins with *City of Boerne v. Flores*, which distinguished between legislation enforcing existing constitutional rights and legislation attempting to redefine their substance. Section 5 permits appropriate enforcement legislation, but remedial and preventive measures must exhibit a congruence and proportionality between the constitutional injury to be prevented or remedied and the means adopted.

The Court applied this framework in *Florida Prepaid Postsecondary Education Expense Board v. College Savings Bank*, holding that Congress had not validly abrogated state sovereign immunity for patent-infringement claims due to an inadequate legislative record and an overly broad statutory remedy. *Florida Prepaid* heavily influenced *Allen v. Cooper*, as both cases concern congressional efforts to subject States to intellectual-property damages liability.

The resulting doctrine asks whether Congress had constitutional authority to subject States to the particular category of liability created by the statute, evaluating both the legislative record and the statutory architecture.

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3. Garrett: Title I Invalid, Title II Reserved

In *Board of Trustees of the University of Alabama v. Garrett*, the Court considered whether Congress had validly abrogated state sovereign immunity through Titles I and II of the ADA.

The Court held that Title I's abrogation was invalid because the legislative record failed to establish a sufficient pattern of unconstitutional state discrimination in employment to justify the breadth of the remedy under the *Boerne* framework. However, *Garrett* expressly declined to decide Title II's validity.

That reservation is critical. *Garrett* cannot be cited for the proposition that the Supreme Court held the ADA's Title II abrogation unconstitutional. Its holding concerned Title I, while Title II was left for future adjudication—differing materially in the fundamental constitutional interests its public-service provisions can implicate.

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4. Lane: Application-Specific Prophylactic Validity and its Friction

In *Tennessee v. Lane*, the Court addressed Title II in the context of individuals alleging that Tennessee denied them meaningful access to its courts due to disability.

The Court held that Title II validly abrogated state sovereign immunity as applied to the class of cases implicating the fundamental right of access to the courts, finding Title II's remedial requirements congruent and proportional to the targeted constitutional violations.

> *Lane* validated a particular class of Title II applications under the prophylactic enforcement power of § 5; it did not generally validate every Title II abrogation.

Critically, *Lane*'s categorization of Title II's reach as a "class of cases" sits somewhat uneasily with the stricter, narrower prophylactic demands seen in later jurisprudence like *United States v. Morrison*. Nonetheless, *Lane* firmly established that the constitutional validity of a statute can be sustained for a defined subset of applications without validating the entire statutory framework.

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5. Georgia: Actual Constitutional Violations and the Claim-by-Claim Inquiry

United States v. Georgia addressed whether Title II validly abrogated state sovereign immunity when a state prisoner alleged conditions of confinement violating both Title II and the Fourteenth Amendment.

The Court held that, insofar as the challenged conduct actually violated the Fourteenth Amendment, Congress unquestionably had authority under § 5 to subject the State to a private damages remedy. Rather than relying on prophylactic enforcement, Congress was enforcing an existing constitutional prohibition.

The Court prescribed a three-part, claim-specific inquiry for lower courts:

1. which aspects of the challenged conduct violated Title II;
2. to what extent those same aspects also violated the Fourteenth Amendment; and
3. insofar as the conduct violated Title II but did not independently violate the Constitution, whether Congress nevertheless validly abrogated state sovereign immunity for that class of conduct.

Accordingly, *Georgia* and *Lane* illustrate two distinct constitutional predicates for abrogation: actual constitutional violations versus prophylactic enforcement legislation.

6. The Lane-Georgia Distinction

Feature	*Lane*	*Georgia*
Principal inquiry	Whether Title II validly enforces constitutional rights for a defined class of applications	Whether the challenged conduct independently violates the Fourteenth Amendment and, if not, whether the Title II abrogation is otherwise valid
Constitutional predicate	Prophylactic enforcement of a fundamental constitutional right	Actual constitutional violation, with prophylactic validity left open for remaining conduct
Role of legislative record	Essential to congruence-and-proportionality analysis	Not necessary to establish § 5 authority once an actual constitutional violation is established
Scope	Defined class of Title II applications	Claim-by-claim inquiry
General Title II validity	Not decided	Not decided

The distinction highlights that the Court evaluates Title II's abrogation by reference to the constitutional basis supporting the particular application rather than broad, wholesale labels.

7. Allen and the Limits of As-Applied Abrogation

Allen v. Cooper concerned the CRCA, enacted to subject States to damages liability for copyright infringement. Following *Florida Prepaid*, the Court unanimously held that the CRCA's broad abrogation exceeded Congress's § 5 power due to an insufficient legislative record.

However, *Allen* left open whether a particular instance of state copyright infringement could independently violate the Fourteenth Amendment under a *Georgia*-type theory. While raised at oral argument by Justice Alito, the Court's opinion did not resolve it.

Crucially, an as-applied theory faces severe structural and statutory hurdles in lower courts: **statutory severability**. When a statute contains an undifferentiated, sweeping abrogation clause, an as-applied theory often fails if the statutory text itself cannot be severed to support a claim-specific remedy, or if the cause of action does not independently sound in the Fourteenth Amendment. A statute's failure as a broad prophylactic enactment does not automatically allow courts to rewrite an overbroad abrogation provision into an as-applied safety valve.

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8. Conclusion: The Architecture of As-Applied Abrogation

The Supreme Court's ADA and intellectual property sovereign-immunity cases do not establish general rules that statutes are either wholly valid or wholly invalid under § 5 of the Fourteenth Amendment.

- *Garrett* reserved Title II while striking down Title I.
- *Lane* sustained Title II abrogation for a defined class of cases involving fundamental access to courts.
- *Georgia* established that Congress may abrogate immunity where challenged conduct independently violates the Fourteenth Amendment.
- *Allen* demonstrated that broad prophylactic abrogation statutes can fail when unsupported by an adequate legislative record, leaving open the complex statutory and constitutional mechanics of severability and as-applied survival.

The correct doctrinal question is therefore neither whether a statute has been labeled "valid" or "invalid" in the abstract, nor whether an as-applied theory can be universally presumed, but whether Congress possessed constitutional authority—and enacted severable statutory text—to subject the State to damages liability for the particular conduct asserted.

References

Allen v. Cooper, 589 U.S. 248 (2020).

Board of Trustees of the University of Alabama v. Garrett, 531 U.S. 356 (2001).

City of Boerne v. Flores, 521 U.S. 507 (1997).

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United States v. Georgia, 546 U.S. 151 (2006).

United States v. Morrison, 529 U.S. 598 (2000).